



CHAPTER 56.

An Act to provide for the inspection of riding establishments; and for other purposes connected therewith. [4th August 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) A local authority may authorise in writing any duly registered veterinary surgeon to inspect any premises which they have reason to believe are used as a riding establishment, and any duly registered veterinary surgeon so authorised shall, on producing, if so required, his authority, have the right at all reasonable times to enter those premises and to inspect such parts thereof and such horses found thereon as he may consider necessary for the purpose of ascertaining whether any offence under this Act is being or has been committed on or in connection with those premises or in connection with any such horse.

Power to enter premises and require production of certificates.

(2) A local authority may pay any duly registered veterinary surgeon a reasonable fee in respect of any exercise of his powers under this section.

2.—(1) If any person—

(a) lets out any horse on hire for riding at a time when the horse is in such a condition that

Offences and legal proceedings.

the riding thereof will be likely to cause suffering to the horse; or

- (b) uses any horse for providing, in return for payment, instruction in riding at a time when the horse is in such a condition that its use for that purpose will be likely to cause suffering to the horse; or
- (c) keeps any horse which is used for the purpose of being let out on hire for riding or of providing, in return for payment, instruction in riding, in so neglected a state or in such conditions that suffering is, or is likely to be, caused to the horse; or
- (d) wilfully obstructs or delays any duly registered veterinary surgeon in the exercise of his powers of entry or inspection under this Act; or
- (e) with intent to avoid such inspection conceals any horse;

he shall be guilty of an offence under this Act and shall be liable on summary conviction to a fine not exceeding twenty-five pounds for the first offence and not exceeding fifty pounds for any subsequent offence.

(2) No prosecution shall be brought for an offence under this Act except by a local authority, and a local authority shall not bring any such prosecution unless they have received and considered such a report from a duly registered veterinary surgeon as they may think appropriate in the circumstances of the case.

(3) Any document stating that a local authority have received and considered such a report from a duly registered veterinary surgeon as they think appropriate in the circumstances of the case, shall, if it purports to be signed by an officer of the authority purporting to have authority to sign the document, be evidence that the authority have received and considered such a report as they are required under this Act to receive and consider before giving any such consent as aforesaid.

Interpreta-
tion and
expenses.

3.—(1) In this Act the following expressions have the meanings hereby assigned to them respectively, that is to say :—

“ Horse ” includes any mare, gelding, pony, foal, colt, filly or stallion, and also any ass;

“Local authority” means, as respects the City of London, the common council, as respects the remainder of the administrative county of London, the London County Council, as respects any county borough, and also as respects any non-county borough or urban district which has according to the last published census for the time being a population of twenty thousand or upwards, the council of the borough or urban district, and as respects any other area, the council of the county;

“Riding establishment” means any stables or other premises whatsoever at which horses are kept for the purpose of being let out on hire for riding or of being used in providing in return for payment instruction in riding, but shall not include any such establishment, conducted solely for military or police purposes or by the Zoological Society of London.

(2) Any expenses of a local authority under this Act shall be defrayed, in the case of the common council of the City of London, out of the general rate, and in the case of the London County Council, out of the County Fund.

(3) Any expenses incurred under this Act by a county council (other than the London County Council) shall, if the council are not for the purposes of this Act the local authority for the whole county, be defrayed as expenses for special county purposes charged on those county districts the councils of which are not local authorities for the purposes of this Act.

4.—(1) This Act may be cited as the Riding Establishments Act, 1939.

Short title,
commence-
ment and
extent.

(2) This Act shall come into operation on the first day of January nineteen hundred and forty.

(3) This Act shall not extend to Northern Ireland or Scotland.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament